

ORDINANCE NO. A 37

TOWN OF DECATUR, MISSISSIPPI

**AN ORDINANCE TO REQUIRE THE INSTALLATION OF
BACKFLOW PREVENTION DEVICES IN ALL NEWLY
CONSTRUCTED BUILDINGS**

WHEREAS, the Mayor and Board of Aldermen of the Town of Decatur, Mississippi, desire to eliminate or minimize the detrimental effect of backflow of water and waste from sewer lines of the Town into private homes and other buildings within the corporate limits of the Town of Decatur; and,

WHEREAS, there presently exists technology that can eliminate or minimize such backflow at a reasonable cost to persons undertaking new construction within the Town of Decatur;

NOW, THEREFORE, BE IT ORDAINED BY THE MAYOR AND BOARD OF ALDERMEN of the Town of Decatur, Mississippi, as follows:

SECTION 1. DEFINITIONS.

- (A) **BACKFLOW PREVENTION DEVICE.** The term "Backflow Prevention Device" means any device reasonably calculated to prevent sewer water or other waste from Town sewer lines from back flowing through private plumbing lines into a structure.
- (B) **STRUCTURE.** The word "structure: means any dwelling, place of business, mobile home or any building of any kind which is connected to or which is intended to be connected to Town of Decatur sewer lines.
- (C) **CONSTRUCTION.** The word "construction" means any activity to erect, build, or construct a new structure. It includes remodeling or renovation of an existing structure where new plumbing lines are to be installed or where a new connection to Town sewer lines is affected. It includes the installation or setting up of a mobile home or modular home in the Town of Decatur where connection is made to Town sewer lines.
- (D) **OWNER.** The word "owner" means the person, corporation, partnership or other entity who owns the land upon which construction of a structure is performed and who institutes the construction. Where construction is being done by a lessee, the word "owner" shall mean the lessee who institutes the construction.

SECTION 2. BACKFLOW PREVENTION DEVICE REQUIRED. From and after April 1, 1990, all persons, firms, corporations or other entities who begin construction of a structure in the Town of Decatur, Mississippi shall cause to be installed a Backflow Prevention Device at or near the location of the connection between Town sewer lines and said structure.

SECTION 3. PENALTIES. The failure to install a Backflow Prevention Device, if required hereunder, shall be a misdemeanor punishable by a fine not to exceed Five Hundred Dollars (\$500.00). Failure to install a Backflow Prevention Device shall also render the owner liable for any damage or loss that might have been prevented by installation of such a device.

SECTION 4. EFFECTIVE DATE. This ordinance shall be in effect from and after April 1, 1990.

The motion having received the affirmative vote of all aldermen, the Mayor declared the motion carried and the above ordinance adopted and enacted, this the 6th day of February, 1990.